Legal, Ethical & User Agreement Analysis on Rokomari.com

A Critical Examination of ToS, Privacy Policy & EULA against Bangladesh Cybersecurity Law & Industry Standards

TRANSPARENCY & ACCESSIBILITY

- POLICY AVAILABLE, BUT NOT CLEARLY SHOWN DURING SIGN-UP/CHECKOUT
- ONLY IN FORMAL ENGLISH, NO BANGLA VERSION
- NO SIMPLE SUMMARY FOR USERS
- UPDATES APPLY WITHOUT USER NOTIICE

MAY CONFLICT WITH DIGITAL COMMERCE POLICY 2018 AND CRPA 2009 CONSUMER TRANSPARENCY PRINCIPLES

PRIVACY & DATA PROTECTION

- COLLECTS PERSONAL, DEVICE, AND PAYMENT DATA
- CONSENT IS IMPLIED BY USING THE SITE
- NO CLEAR DATA RETENTION TIME
- THIRD-PARTY COOKIE USE NOT CLEARLY EXPLAINED
- NO SELF-SERVICE ACCOUNT DELETION OPTION

MAY CONFLICT WITH SECTION 26 OF THE DIGITAL SECURITY ACT 2018, WHICH REQUIRES CLEAR USER CONSENT BEFORE COLLECTING PERSONAL IDENTITY INFORMATION.

ROLE & LIABILITY DISCLAIMER

- SERVICE PROVIDED ON "AS IS" BASIS
- NO GUARANTEE OF ACCURACY OR UNINTERRUPTED SERVICE
- NO RESPONSIBILITY FOR THIRD-PARTY LINKS/CONTENT

MAY CONFLICT WITH CRPA 2009 CONSUMER PROTECTION RIGHTS.

INTELLECTUAL PROPERTY & CONTENT

- ROKOMARI OWNS ALL SITE CONTENT, LOGOS, AND TRADEMARKS
- USERS GET ONLY A LIMITED PERSONAL ACCESS LICENSE
- USER REVIEWS MAY BE USED FOR ADS OR EDITORIAL PURPOSES
- BROAD IP/PRIVACY WAIVER CLAUSE MAY AFFECT USER RIGHTS

THE WAIVER CLAUSE IS CONCERNING AS IT MAY AFFECT USER PRIVACY RIGHTS, AND THERE IS NO CLEARLY DEFINED PROCESS FOR COPYRIGHT COMPLAINTS OR CONTENT TAKEDOWN

PROHIBITED ACTIVITIES, TERMINATION & ENFORCEMENT

- FRAUD, ILLEGAL ACTS, HARASSMENT, LAW VIOLATIONS
- BANNED/ANTI-LIBERATION WAR CONTENT
- HACKING/UNAUTHORIZED ACCESS (DSA/CSA 2023)
- HATE SPEECH (RELIGION, RACE, GROUPS)

THERE IS NO GUARANTEED COMPLAINT RESPONSE TIMEFRAME (SUCH AS 72 HOURS), NO DESIGNATED COMPLIANCE OFFICER, TERMINATION POLICIES ARE BROAD WITH LIMITED APPEAL OPTIONS, DISPUTE RESOLUTION RELIES SOLELY ON COURTS WITHOUT ADR, AND THERE IS NO CLEAR REFUND POLICY FOR EBOOKS OR DIGITAL CONTENT

USER RIGHTS, RESPONSIBILITIES & CONDUCT

- ACCESS & UPDATE PERSONAL DATA (ADMIN@ROKOMARI.COM)
- OPT OUT OF MARKETING EMAILS ANYTIME
- REQUEST DATA/ACCOUNT DELETION VIA EMAIL
- UPDATE ACCOUNT SETTINGS ANYTIME
- MUST BE 18+ TO USE

USERS MUST PROVIDE ACCURATE INFORMATION AND MAINTAIN ACCOUNT SECURITY, WHILE CONTINUED USE OF THE PLATFORM IMPLIES ACCEPTANCE OF POLICY CHANGES WITHOUT SEPARATE CONSENT.

COMPLIANCE WITH LAWS & REGULATIONS

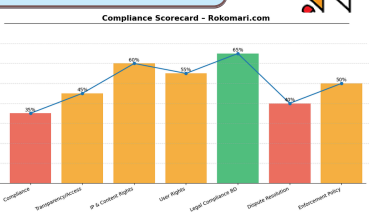
- FOLLOWS BANGLADESHI LAW AND LOCAL DISPUTE RULES
- USES BANGLADESH BANK–REGULATED PAYMENT GATEWAYS
- REGISTERED BUSINES UNDER THE COMPANIES ACT 1994

MAY CONFLICT WITH SECTION 26 OF THE DIGITAL SECURITY ACT 2018, WHICH REQUIRES CLEAR USER CONSENT BEFORE COLLECTING PERSONAL IDENTITY INFORMATION.

DISPUTE RESOLUTION & REFUNDS

- PHYSICAL BOOKS: "HAPPY RETURN POLICY" (RETURNS FOR DAMAGED/WRONG ITEMS); COD REDUCES RISK
- DISPUTES HANDLED UNDER BANGLADESH COURT SYSTEM
- TERMS APPLY BASED ON VERSION AT DISPUTE TIME (NO RETROACTIVE CHANGES)

THERE IS NO CLEAR REFUND POLICY FOR EBOOKS/DIGITAL CONTENT (ACCESS ISSUES REPORTED) AND NO ADR/ARBITRATION SYSTEM



RESOURCES USED:

- ROKOMARI.COM/POLICY
- WIKIPEDIA
- BANGLADESH DIGITAL SECURITY ACT 2018
- CYBER SECURITY ACT 2023
- ICT ACT 2006
- COPYRIGHT ACT 2000
- NATIONAL DIGITAL COMMERCE POLICY 2018
- CONSUMER RIGHTS PROTECTION ACT 2009

PRESENTED BY:

- GROUP 4
- CSE487, SECTION 3
- EAST WEST UNIVERSITY